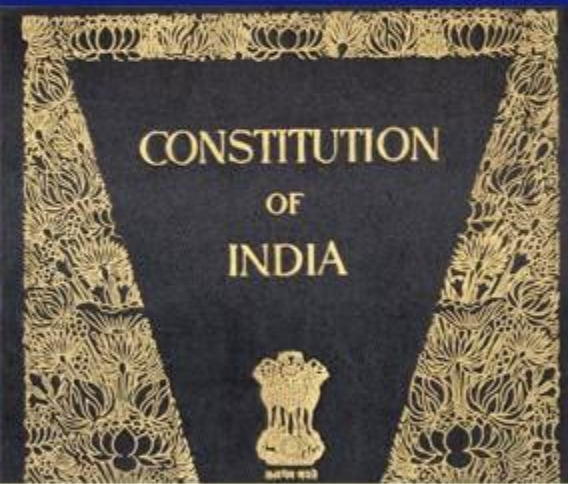


INDIAN POLITY



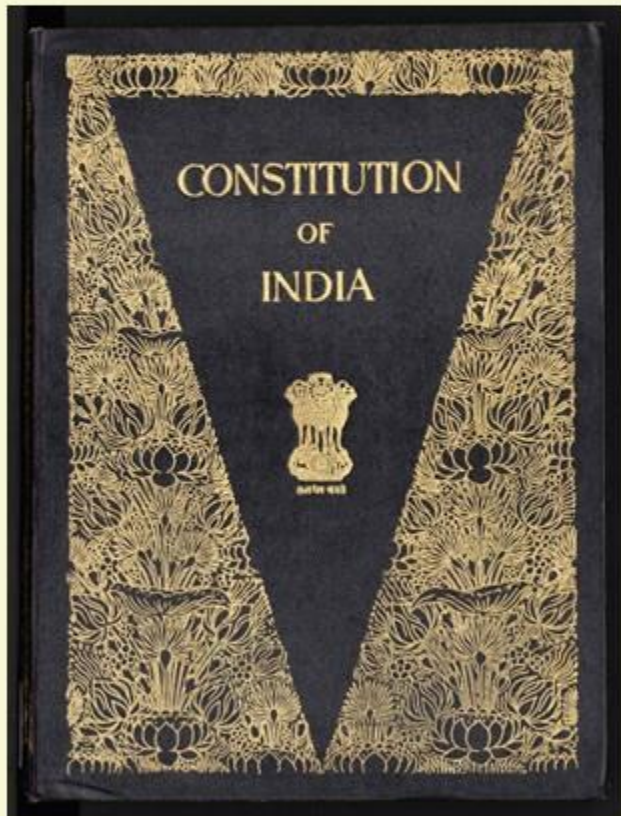
MODULE - 42

FUNDAMENTAL RIGHTS

- ARTICLE 32
- WRITS IN INDIA

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



1 A mere declaration of fundamental rights in the Constitution is **meaningless, useless and worthless** without providing an effective **machinery for their enforcement**, if and when they are violated.

2 Hence, Article 32 confers the right to remedies for the enforcement of the fundamental rights of an aggrieved citizen.

3 In other words, the right to get the Fundamental Rights protected is in itself a fundamental right. **This makes the fundamental rights real.**

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



4 That is why Dr. Ambedkar called Article 32 as the most important Article of the Constitution “An Article without which this Constitution would be a nullity. It is very soul of the Constitution and the very heart of it”.

5 The Supreme Court has ruled that Article 32 is a basic feature of the Constitution. Hence, it cannot be abridged or taken away by way of an amendment to the Constitution. It contains the following four provisions.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



PROVISION NO. 1

The right to move the Supreme Court by appropriate proceedings for the enforcement of the Fundamental Rights is guaranteed.

PROVISION NO. 2

- The Supreme Court shall have power to issue directions or orders or writs for the enforcement of any of the fundamental rights.
- The writs issued may include habeas corpus, mandamus, prohibition, certiorari and quo-warranto.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES

IMPORTANT
FOR MCQs



PARLIAMENT OF INDIA

PROVISION NO. 3

- *Parliament can empower any other court to issue directions, orders and writs of all kinds.*
- However, this can be done without prejudice to the above powers conferred on the Supreme Court. Any other court here does not include high courts because Article 226 has already conferred these powers on the high courts.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



PROVISION NO. 4

- The right to move the Supreme Court shall not be suspended except as otherwise provided for by the Constitution.
- Thus, the Constitution provides that the President can suspend the right to move any court for the enforcement of the fundamental rights **during a national emergency (Article 359).**

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



6 It is thus clear that the Supreme Court has been constituted as the defender and guarantor of the fundamental rights of the citizens.

7 It has been **vested with the “original” and “wide” powers for that purpose.**

8 Original, because an aggrieved citizen can directly go to the Supreme Court, not necessarily by way of appeal. Wide, because its power is not restricted to issuing of orders or directions but also writs of all kinds.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



9 The purpose of Article 32 is to provide a **guaranteed, effective, expeditious, inexpensive and summary remedy** for the protection of the fundamental rights.

10 Only the Fundamental Rights guaranteed by the Constitution can be enforced under Article 32 and not any other right like non-fundamental Constitutional rights, statutory rights, customary rights and so on.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



- 11** The violation of a fundamental right is the *sine qua non* for the exercise of the right conferred by Article 32.
- 12** In other words, the Supreme Court, under Article 32, cannot determine a question that does not involve Fundamental Rights.
- 13** Article 32 cannot be invoked simply to determine the Constitutionality of an executive order or a legislation unless it directly infringes any of the Fundamental Rights.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



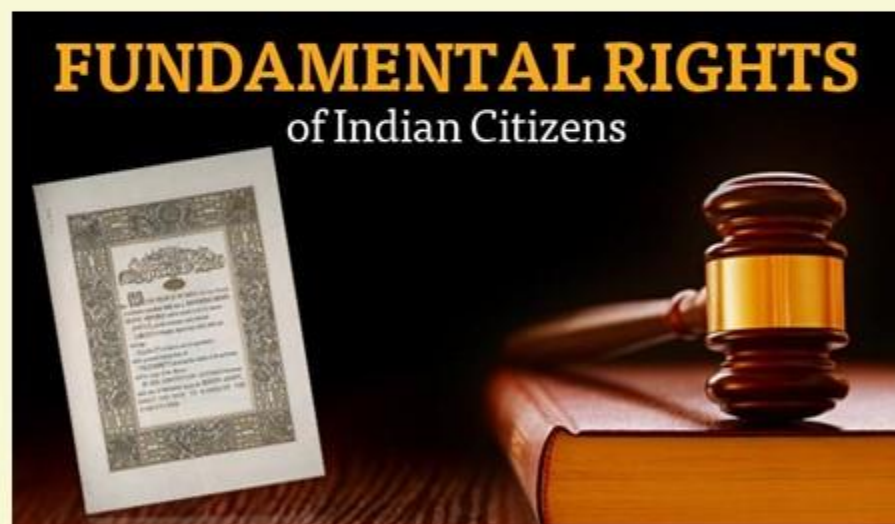
Principal Bench, Bengaluru



- 14** In case of the enforcement of Fundamental Rights, the **jurisdiction of the Supreme Court is original but not exclusive.**
- 15** It is **concurrent** with the jurisdiction of the High Court under **Article 226.**
- 16** It vests original powers in the High Court to issue directions, orders and writs of all kinds for the enforcement of the Fundamental Rights
- 17** It means when the Fundamental Rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly.

ARTICLE 32

RIGHT TO CONSTITUTIONAL REMEDIES



18 Since the Right guaranteed by Article 32 (i.e the Right to move the Supreme Court where a fundamental Right is infringed) is in itself a fundamental right, **the availability of alternate remedy is no bar to relief under Article 32.**

19 However, the Supreme Court has ruled that where relief through High Court is available under Article 226, the aggrieved party should first move the High Court.

WRITS – TYPES & SCOPE

- 1 The Supreme Court (under Article 32) and the high courts (under Article 226) can issue the writs of habeas corpus, mandamus, prohibition, certiorari and quo-warranto.
- 2 Further, the Parliament (under Article 32) can empower any other court to issue these writs.
- 3 Since no such provision has been made so far, only the Supreme Court and the high courts can issue the writs and not any other court.
- 4 Before 1950, only the High Courts of Calcutta, Bombay and Madras had the power to issue the writs.
- 5 Article 226 now empowers all the high courts to issue the writs.
- 6 These writs are borrowed from English law where they are known as '**prerogative writs**'.
- 7 They are so called in England as **they were issued in the exercise of the prerogative of the King who was, and is still, described as the 'fountain of justice'.**
- 8 Later, the English high court started issuing these writs as extraordinary remedies to uphold the rights and liberties of the British people.

WRITS – TYPES & SCOPE

Writ Jurisdiction of Supreme Court differs from that of a High Court in three respects:



1

- The Supreme Court can issue writs only for the enforcement of fundamental rights whereas a high court can issue writs not only for the enforcement of Fundamental Rights but also for any other purpose.
- The expression 'for any other purpose' refers to the enforcement of an ordinary legal right.
- Thus, the writ jurisdiction of the Supreme Court, in this respect, is narrower than that of high court.

WRITS – TYPES & SCOPE

Writ Jurisdiction of Supreme Court differs from that of a High Court in three respects:



- 2 ■ The Supreme Court can issue writs against a person or Government throughout the territory of India whereas a high court can issue writs against a person residing or against a Government or authority **located within its territory jurisdiction only or outside its territorial jurisdiction only if the cause of action arises within its territorial jurisdiction.**
- Thus, the territorial jurisdiction of the Supreme Court for the purpose of issuing writs is **wider than that of a high court.**

WRITS – TYPES & SCOPE

Writ Jurisdiction of Supreme Court differs from that of a High Court in three respects:



3

- A remedy under Article 32 is in itself a Fundamental Right and hence, the Supreme Court may not refuse to exercise its writ jurisdiction.
- On the other hand, a remedy under Article 226 is discretionary and hence, a high court may refuse to exercise its writ jurisdiction. Article 32 does not merely confer power on the Supreme Court as Article 226 does on a high court to issue writs for the enforcement of fundamental rights or other rights as part of its general jurisdiction.
- The Supreme Court is thus constituted as a defender and guarantor of the fundamental rights.

Now, we will proceed to understand the meaning and scope of different kinds of writs mentioned in Articles 32 and 226 of the Constitution:

WRITS – TYPES & SCOPE

1

HABEAS CORPUS

1 It is a Latin term which literally means 'to have the body of'.

2 It is an order issued by the court to a person who has detained another person, to produce the body of the latter before it.

3 The court then examines the cause and legality of detention.

4 It would set the detained person free, if the detention is found to be illegal.

5 Thus, this writ is a bulwark of individual liberty against arbitrary detention.

6 The writ of habeas corpus can be issued against both public authorities as well as private individuals.

7 The writ, on the other hand, is not issued where the

- a) Detention is lawful
- b) The proceeding is for contempt of a legislature or a court
- c) Detention is by a competent court, and
- d) Detention is outside the jurisdiction of the court.

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